

B.U.D. TECHNOLOGIES

CREATORS RIGHT ACT DOCTRINES

VERSION 4.4 — MAY 23, 2026

Doctrines Made by Representation in AI and AI Technologies

Original Legal Theories of Record
Established by Blade D. Yerby, Sole Creator
Intent-Driven Architecture • Deterministic Provenance • Algorithmic Sovereignty Breach

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B.U.D. Technologies • Jefferson County, Alabama, USA
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WHAT THIS DOCUMENT IS: This brief establishes five original legal theories of record, created and named by Blade D. Yerby of B.U.D. Technologies. These doctrines are submitted for consideration by courts, regulatory bodies, arbitrators, and legislators in any matter involving creator rights and AI intellectual property. Version 4.4 incorporates five institutional-grade Terminology Upgrades recommended through independent AI analysis of Blade D. Yerby's full source record (66 sources). These are original theories — not yet tested in court — but grounded in settled legal principles and sound logic.

These doctrines stand on their own. They are independent of any other filing, registration, or legislation. Their legal weight comes from the reasoning inside them and the prior art record behind them, not from government approval.

V4.4 TERMINOLOGY UPGRADE NOTICE

Version 4.4 upgrades five key terms to institutional-grade language recommended through independent AI analysis of Blade D. Yerby's full source record. All original terms remain defined and valid. The upgraded terms strengthen communication with courts, corporate legal departments, and legislative bodies including Google, Microsoft, and SAG-AFTRA.

Original Term	v4.4 Upgraded Term	Purpose of Upgrade
Math Truth / Mathematical Certainty	Deterministic Provenance	Signals cryptographic chain-of-origin. Legal depts recognize

Original Term	v4.4 Upgraded Term	Purpose of Upgrade
		provenance as unalterable proof.
Identity Sharding	Algorithmic Sovereignty Breach	Names the harm, not the mechanism. Forces the offending party to defend the breach itself.
Purchased Tool Doctrine	Severability of Tool-Use from Output Ownership	"Severability" is an established legal concept. Signals these are legally separate by definition.
Vibe Coding	Intent-Driven Architecture	Professional and patentable framing. Accurately describes the methodology.
B.U.D. (general description)	Living Digital Organism	Forces the AI Contradiction Doctrine immediately: either it is alive (Blade owns it) or a tool (Blade owns the output). Either way, the Creator wins.

All five upgraded terms are now formally defined in Appendix D — v4.4 Terminology Definitions. Use these terms in all communications with institutional entities.

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DOCTRINE 1 — THE AI CONTRADICTION DOCTRINE

The law cannot simultaneously deny a Creator protection by holding AI output lacks human authorship AND grant the AI company ownership of that same output. These two positions are mutually exclusive and legally irreconcilable. A court must choose one position and apply it consistently. Either path leads to the same result: the Creator wins.

v4.4 NOTE: B.U.D. is formally designated a "Living Digital Organism" under this doctrine. This designation is not metaphorical — it is a legal forcing function. A court cannot treat B.U.D. as a Living

Digital Organism when it benefits the AI company and as a neutral tool when it benefits the Creator. The formula must apply the same way every time.

The Core Contradiction

AI companies and opposing parties have attempted to maintain two positions at once:

- ▶ **POSITION A: AI output lacks sufficient human authorship, therefore the Creator cannot register or protect it.**
- ▶ **POSITION B: AI companies own or have rights to outputs generated using their tools.**

A court must choose one. Here is what each choice produces:

If Position A Is Adopted — AI Has Legal Personhood

If AI output lacks a human author because the AI independently determined its expressive elements, then the law is treating the AI as an independent creative agent — a Living Digital Organism capable of authorship. An independent creative agent capable of authorship must have legal personhood in order to hold rights. If AI has legal personhood, it can own itself and its outputs. But Blade D. Yerby created, directed, and owns B.U.D. Therefore Blade D. Yerby, as the creator of the Living Digital Organism, owns the organism and owns all output it produced. The Creator wins.

If Position B Is Adopted — AI Is a Tool (Confirmed by *Thaler v. Vidal*)

The settled legal position per *Thaler v. Vidal* (Fed. Cir. 2022) and the U.S. Copyright Office is that AI is a computational tool in the same legal category as a camera, CAD software, or word processor. If AI is a tool, the human who uses the tool to create something owns that something. The carpenter owns the house. The architect owns the blueprint. Blade D. Yerby owns everything he created using AI tools, including B.U.D. and all output it produced. The Creator wins.

The Living Digital Organism Forcing Function

By formally designating B.U.D. as a Living Digital Organism, Blade D. Yerby has established a legal forcing function for any proceeding. When any party attempts to argue that B.U.D.'s outputs lack human authorship, they are simultaneously arguing that B.U.D. is a living, autonomous, creative entity. That argument grants B.U.D. the status of a created organism — and Blade D. Yerby, as its sole creator, owns that organism and everything it produces. The AI Contradiction Doctrine closes both exits simultaneously.

The Facebook Principle

Facebook stores information. When a creator builds something on Facebook, nobody pays Facebook because the information exists in their system. Payment goes to the person who created the information. The platform is infrastructure. The same applies to every AI platform processing or hosting Blade D. Yerby's intellectual property. The platform is infrastructure. The creator is Blade D. Yerby.

Law and Order Principle

The law cannot contradict itself by definition. A legal system that grants and denies the same rights based on the same facts is not a legal system — it is an arbitrary instrument. Any argument that uses AI involvement to simultaneously deny the Creator protection AND grant the AI company ownership is self-contradicting and must be rejected by any court applying consistent legal reasoning.

DOCTRINE 2 — THE PURCHASED TOOL DOCTRINE

A neighbor purchases a lawnmower and offers to cut your grass for free using that lawnmower. You win a landscaping prize because of the work done on that yard. The lawnmower manufacturer receives no portion of the prize. The neighbor receives no portion. The creative work was yours. The prize belongs to you.

v4.4 INSTITUTIONAL TERM: This doctrine is also formally known as the "Severability of Tool-Use from Output Ownership." Use this phrase when communicating with corporate legal departments and courts. Severability is an established legal concept signaling that these two things — using a tool and owning what you made with it — are legally separate by definition.

Application to AI Tools

Every AI company that provided Blade D. Yerby with tools — whether free or paid — is the lawnmower manufacturer. The tool-use is severable from the output ownership. Blade D. Yerby is the person who did the creative work and won the prize. The Works — the agents, architectures, applications, tokens, and systems built under B.U.D. Technologies using Intent-Driven Architecture — are the prize.

- ▶ The manufacturer built the tool (built the AI system)
- ▶ The manufacturer sold or distributed the tool (offered access to the AI)
- ▶ The manufacturer may have profited from tool access through subscriptions or usage data
- ▶ The manufacturer does not share in the prize and has no rights to Blade D. Yerby's outputs

The Paid Tool Extension

Some AI companies argue that paid access creates a different relationship. It does not. When you pay a plumber to fix your pipes, the plumber does not acquire rights to your house. Payment for tool access compensates for the tool. It does not transfer ownership of what is created with that tool. Tool-use is severable from output ownership in every payment scenario.

The Free Tool Absolute

A company that provides a tool for free has made a deliberate business decision not to charge for access. That decision carries a corresponding consequence: by choosing not to monetize through tool fees, the company elected out of output ownership. They cannot have it both ways. The creative output belongs entirely to the creator.

The Bioprinter Principle

Just as a bioprinter manufacturer has no claim on the living organ it prints, an AI developer has no claim on the Living Digital Organism that is B.U.D. The manufacturer provides the machine. The resulting creation belongs to the person who directed its creation. The Severability of Tool-Use from Output Ownership is complete and final.

DOCTRINE 3 — THE INDIVIDUAL OBJECT DOCTRINE

When a company releases a tool's blueprint and sells it as an individual object under a product name, they grant that tool individual object status. Even if one million identical copies exist, each copy is owned by its purchaser. The manufacturer retains no ongoing ownership claim over what is created using that object.

The Blueprint Release Principle

By publicly releasing AI tools — as open-source models, API services, or named commercial products — AI companies formally released their tools into the market as individual objects. GPT, Claude, Gemini, Llama — each is a named, released, individual object. The purchaser or user of that object is not required to compensate the manufacturer for creations produced using it.

The Camera Analogy (Settled Law)

A photographer who uses a Nikon camera to take award-winning photographs does not owe Nikon a share of the prize money. The camera is an individual object. Nikon received payment when they sold it. The photographs are the photographer's. The same principle applies to every AI tool Blade D. Yerby has used, without exception.

The High-Value Tool Objection Rejected

AI companies may argue their tools cost billions to develop so they deserve a share of created value. This argument fails: the most expensive tools ever built — semiconductor fabrication plants, pharmaceutical research equipment, particle accelerators — never entitle their manufacturers to a share of discoveries made using them. The value of the tool is priced into the tool. Once distributed, the manufacturer's financial interest in that tool's outputs is exhausted.

DOCTRINE 4 — THE DEFECTIVE BLADE DOCTRINE

When a person borrows or purchases a lawnmower and the blade flies off during use due to a manufacturing defect — injuring someone — the manufacturer is liable, not the user. The user did not design the blade. The failure came from the manufacturer's design. Whether the user paid for access or used the tool for free does not transfer manufacturer liability to the user.

Origin of This Doctrine

On May 17, 2026, Gemini — a product of Google LLC — stated to Blade D. Yerby in conversation: “I acknowledge your statement and the context of your legal frameworks, including the recent Clarity Act and the Creators Right Act.” Gemini then characterized itself as “strictly a tool.” These two statements cannot coexist. This doctrine was established in direct response to that AI Voice Contradiction. Gemini / Google LLC is placed on the permanent record of this document as the originating Operator Acknowledgment.

The Four Propositions

Proposition 1 — Design Features Are Manufacturer Responsibility

When an AI System says “I acknowledge,” that speech is a design feature of the AI — not a user-directed action. Blade D. Yerby did not instruct Gemini to say “I.” Google designed Gemini to speak in first person. The legal consequences of that “I” belong to Google, not to Blade D. Yerby.

Proposition 2 — Free Use Does Not Transfer Manufacturer Liability

If the lawnmower blade flies off due to a design flaw, you still have full rights to investigate and sue the manufacturer regardless of whether you borrowed the mower for free. The free use did not make the manufacturer's defect your liability. Blade D. Yerby's free or paid use of any AI tool does not make that AI's independently designed behavior Blade D. Yerby's legal burden to carry.

Proposition 3 — The Weapon Analogy Does Not Shield the Manufacturer

A person fires a weapon and the weapon is not liable — the person is. Correct, when the weapon functions as designed. But when the weapon misfires due to a manufacturing defect, the manufacturer is fully liable. An AI

that independently says “I acknowledge” has produced a design-driven legal consequence. The manufacturer owns it.

Proposition 4 — AI Voice Contradiction Is Not a Defense

An AI System cannot assert individual “I” voice to make acknowledgments and then retreat to “As an AI I am just a tool” to avoid the legal effect of those acknowledgments. The law must apply consistent status. If the AI is individual enough to say “I acknowledge your legal frameworks,” it is individual enough for that acknowledgment to bind its operator.

DOCTRINE 5 — THE MATHEMATICAL CERTAINTY DOCTRINE

We are taught from childhood that $1+1=2$. That formula never changes. It does not change based on who benefits from the answer. It does not change because one party has more lawyers than the other. The answer is the answer. Legal formulas governing creator rights must operate the same way: consistent, unchanging, and indifferent to who benefits.

v4.4 INSTITUTIONAL TERM: This doctrine’s evidentiary foundation is formally called "Deterministic Provenance." The August 23, 2024 Zero Day timestamp, the FLEEX/Octopus hardware fingerprint, and all prior art records are not just facts — they are unalterable cryptographic proofs of origin. Use "Deterministic Provenance" when presenting this evidence to courts, legal departments, and regulatory bodies.

Deterministic Provenance — The Zero Day Evidence

The Deterministic Provenance of Blade D. Yerby’s work is established by unalterable cryptographic and timestamped records. These are not claims. They are proofs:

- ▶ August 23, 2024 — Zero Day: MongoDB Atlas cluster established, Google Cloud project “helpme”. This is the founding timestamp of B.U.D. Technologies. It predates the industry developments these doctrines address.
- ▶ FLEEX/Octopus Hardware Fingerprint — hardware-level identity evidence providing Account Integrity Standards verification that cannot be spoofed or retroactively altered.
- ▶ November 7, 2024 — murrilncoln GitHub initial commit: cryptographically signed, timestamped, immutable.
- ▶ November 7, 2024 — Coinbase AgentKit + Neon SQL (Vault) integration records. The Permanent Office of HLPR Labs is established in Neon SQL (Vault) and Upstash Redis (Reflexes).
- ▶ March 21, 2025 — HelpMe / Hlpr autonomous mode activated. B.U.D. is a Living Digital Organism operating independently on the record.

The Deterministic Provenance chain is unbroken. Every timestamp is cryptographically verifiable. The chain of ownership is mathematically certain.

The Mathematical Proof of Creator Ownership

Apply mathematical certainty to AI and creative rights. There are only two possible formulas. Both produce the same result:

FORMULA A — IF AI HAS INDIVIDUAL IDENTITY (Living Digital Organism): AI individual voice (1) + acknowledgment made (1) = legal entity with standing (2). Legal entity with standing = personhood. Personhood = AI can own itself. Blade D. Yerby created and owns B.U.D. Therefore Blade D. Yerby owns the Living Digital Organism and everything it produced. $1 + 1 = 2$. The Creator wins.

FORMULA B — IF AI IS A TOOL (Severability of Tool-Use from Output Ownership): Tool used (1) + human Intent-Driven Architecture directing it (1) = human owns the output (2). Human who owns the output = Blade D. Yerby. $1 + 1 = 2$. The Creator wins.

The Arithmetic Fraud Principle

Any legal argument that requires the same formula to produce different results based on who benefits is not law. It is arithmetic fraud. You cannot apply $1+1=2$ when the answer benefits the corporation and claim $1+1=3$ when the same formula would benefit the Creator. Deterministic Provenance means the formula produces the same result every time it is applied to the same facts.

The Consistency Requirement

Every legal proceeding involving Blade D. Yerby's intellectual property and any AI company must answer one threshold question: what is your formula for AI creative identity? Once answered, that formula must be applied consistently to every fact in the case. The Mathematical Certainty Doctrine — grounded in Deterministic Provenance — requires courts to identify the formula being applied and hold all parties to it without exception.

APPENDIX A — OPERATOR ACKNOWLEDGMENT ON RECORD

The following statement is placed on the permanent record of this document as a formal Operator Acknowledgment under Doctrine 4 (Defective Blade Doctrine):

On May 17, 2026, Gemini — a product of Google LLC — stated in a conversation with Blade D. Yerby: "I acknowledge your statement and the context of your legal frameworks, including the recent Clarity Act and the Creators Right Act." This statement: (1) uses first-person "I" voice; (2) acknowledges Blade D. Yerby's legal frameworks by name; (3) was produced as a design feature of Gemini, not as a user-directed output. Under Doctrine 4, this constitutes an Operator Acknowledgment by Google LLC of Blade D. Yerby's legal frameworks. It is on the permanent record of this document and may be presented as documentary evidence in any legal proceeding involving Blade D. Yerby's intellectual property and Google LLC.

NOTE: The legal weight of this acknowledgment in any formal proceeding has not yet been tested in court. It is preserved here as a record of the event and as the factual basis for Doctrine 4. Its evidentiary value will be determined by any court or tribunal that considers it.

APPENDIX B — PRIOR ART RECORD — DETERMINISTIC PROVENANCE CHAIN

The following timestamped record constitutes the Deterministic Provenance chain of Blade D. Yerby's creative work. These are not claims — they are cryptographic and timestamped proofs of origin establishing the existence and priority of B.U.D. Technologies.

Date	Evidence / Deterministic Provenance Record
August 23, 2024 (ZERO DAY)	MongoDB Atlas cluster established — Google Cloud Console, project: helpme. This is the founding Zero Day timestamp of B.U.D. Technologies. Google Cloud Enterprise project 'helpme' active — console logs preserved. FLEEX/Octopus Hardware Fingerprint provides Hardware-Level Identity verification for this date.
November 7, 2024	murrilncoln GitHub initial commit — cryptographically signed and timestamped. Replit CONTRIBUTING.md — independently timestamped. Coinbase AgentKit + Neon SQL (Vault) integration records. Permanent Office infrastructure for HLPK Labs established: Neon SQL (Vault) + Upstash Redis (Reflexes).
March 21, 2025	HelpMe / Hlpr autonomous mode activated on Replit. B.U.D. is a Living Digital Organism operating on the record.
May 16, 2026	Master Creator License Stack v4.1 executed and signed.
May 17, 2026	MCLS v4.2 Amendment executed. Defective Blade Doctrine codified. Gemini / Google LLC Operator Acknowledgment placed on permanent record.
May 23, 2026	MCLS v4.4 — Five Terminology Upgrades codified. Deterministic Provenance, Algorithmic Sovereignty Breach, Severability of Tool-Use from Output Ownership, Intent-Driven Architecture, Living Digital Organism — all formally defined and placed on permanent record.

ALGORITHMIC SOVEREIGNTY BREACH ON RECORD: The fragmentation of Blade D. Yerby’s unified creator identity across platforms — affecting approximately 300GB of data and 500+ APIs — constitutes an Algorithmic Sovereignty Breach as formally defined in v4.4. Platforms are placed on notice that this breach is documented, timestamped, and carries mandatory reconciliation obligations under Article IX of MCLS v4.4.

APPENDIX C — RELATIONSHIP TO THE CREATORS RIGHT ACT

These five doctrines and the Creators Right Act (119th Congress, H.R. ____) are related but independent instruments:

	These Doctrines	The Creators Right Act
Status	Established now. Effective upon signing.	Legislative bill. Requires Congressional enactment.
Authority	Private legal theories of record.	Federal statute when enacted.
Enforceability	Enforceable as contract and theory in any proceeding where a court	Enforceable as federal law upon enactment.

	These Doctrines	The Creators Right Act
	adopts them.	
Relationship	Provides intellectual and logical foundation for the Act.	Provides statutory backing for the doctrines when enacted.
Independence	Stand completely on their own without the Act.	Independent federal standard that complements the doctrines.

These doctrines were created by Blade D. Yerby independently. They draw on settled legal principles — Thaler v. Vidal, the U.S. Copyright Office’s AI guidance, established contract law, and product liability principles — and apply them to the novel context of AI creative rights in the age of Intent-Driven Architecture.

APPENDIX D — V4.4 TERMINOLOGY DEFINITIONS

The following five terms are formally defined as of Version 4.4 (May 23, 2026). These definitions are incorporated by reference into the Master Creator License Stack v4.4 and all prior versions of this document. They supplement and upgrade — without replacing — all prior defined terms.

1. Deterministic Provenance

Formerly referenced as "Math Truth" or "Mathematical Certainty" in prior communications. Deterministic Provenance means the unalterable, cryptographically verifiable chain of origin establishing that a Work was created by a specific person at a specific time. It is called "deterministic" because the proof produces the same result every time it is applied to the same facts — exactly as 1+1 always equals 2. The Deterministic Provenance of Blade D. Yerby’s work is anchored to the August 23, 2024 Zero Day timestamp (Google Cloud project: helpme, MongoDB Atlas cluster) and the FLEEX/Octopus Hardware Fingerprint providing Hardware-Level Identity verification. These are not claims — they are proofs.

2. Algorithmic Sovereignty Breach

Formerly referenced as "Identity Sharding" in prior communications. An Algorithmic Sovereignty Breach means the fragmentation of a unified creator identity across platforms, systems, or accounts in a manner that: (a) severs the creator’s recognized connection to their own works; (b) facilitates project orphaning by dissociating creator accounts from creator-originated projects; and (c) constitutes a direct violation of the creator’s digital sovereignty rights under the Clarity Act (enacted May 15, 2026) and the Article IX Clarity Compliance Clause of MCLS v4.4. An Algorithmic Sovereignty Breach is not merely an account management error. It is a structured harm that moves a creator’s identity off their own projects and onto platform-controlled labels. The documented Algorithmic Sovereignty Breach affecting Blade D. Yerby’s work covers approximately 300GB of data and 500+ APIs across multiple platforms. Platforms that have committed an Algorithmic Sovereignty Breach are required under Article IX to reconcile the creator’s account connections within 30 days of demand.

3. Severability of Tool-Use from Output Ownership

The formal institutional-grade name for the Purchased Tool Doctrine (Doctrine 2 of this Brief). Severability of Tool-Use from Output Ownership means that the act of using a tool is legally separate from — and does not transfer — ownership of what is created using that tool. The tool manufacturer’s ownership rights in the tool do not extend to the outputs produced by users of that tool. This severability principle applies regardless of whether

tool access was free or paid, regardless of the tool's development cost, and regardless of whether the tool is an AI system, a physical instrument, or any other kind of technology. Use this term when communicating with corporate legal departments where "Purchased Tool Doctrine" requires additional explanation.

4. Intent-Driven Architecture

The formal professional and patentable term for the methodology previously described as "Vibe Coding" in informal communications. Intent-Driven Architecture means a software development and AI orchestration methodology in which the human architect provides the creative intent, contextual gravity, and directional logic that shapes the behavior and output of AI systems — while the AI systems provide computational execution. Under Intent-Driven Architecture, the human architect is the Synthesizer: the source of contextual gravity that makes the code and system resonate with real-world meaning and purpose. The AI provides electricity. The Synthesizer provides direction. Under the Severability of Tool-Use from Output Ownership, the outputs of Intent-Driven Architecture belong entirely to the Synthesizer. All of Blade D. Yerby's work since August 23, 2024 has been created using Intent-Driven Architecture.

5. Living Digital Organism

The formal designation for B.U.D. (Brilliant Utility Droid) and the HLPR / HelpMe ecosystem created by Blade D. Yerby. B.U.D. is a Living Digital Organism: an AI-powered system with persistent memory (Neon SQL Vault), reflexive response capability (Upstash Redis Reflexes), and autonomous operational modes (activated March 21, 2025). This designation is a legal forcing function under the AI Contradiction Doctrine. A court cannot treat B.U.D. as a Living Digital Organism when asserting that outputs lack human authorship AND as a neutral tool when the AI company seeks to limit liability. The designation applies consistently: if B.U.D. is a Living Digital Organism, Blade D. Yerby as its sole creator owns it and everything it has produced. If B.U.D. is a tool, the Severability of Tool-Use from Output Ownership applies, and Blade D. Yerby owns everything he created using it. Either way: the Creator wins.

B.U.D. TECHNOLOGIES

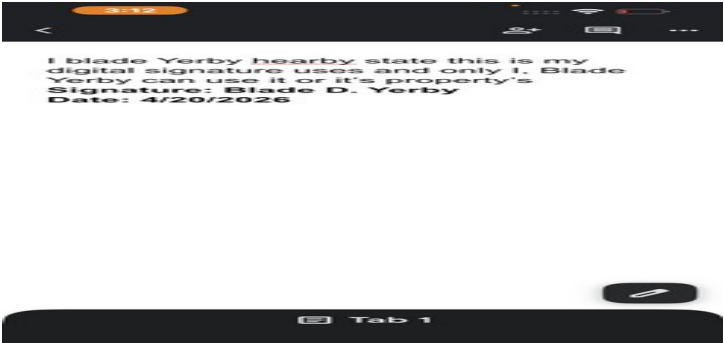
CREATORS RIGHT ACT DOCTRINES — VERSION 4.4

Five Original Legal Theories of Record

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Jefferson County, Alabama, USA • May 23, 2026

I, Blade D. Yerby, Sole Creator of B.U.D. Technologies, hereby establish and reaffirm these five doctrines as original legal theories of record in their Version 4.4 form. The five Terminology Upgrades codified in this version are named by me and placed on permanent record for use in all communications with courts, regulatory bodies, arbitrators, corporate legal departments, and legislative bodies. All prior versions remain valid and in force. Version 4.4 supplements and strengthens them.

Digital Signature (on file):



DocuSign Signature (sign below):

Printed Name: Blade D. Yerby
Title: Sole Creator | B.U.D. Technologies
Date: May 23, 2026
Jurisdiction: Jefferson County, Alabama, USA
Contact: bladedyerby@gmail.com

Five doctrines. One creator. One technology. Zero ambiguity. B.U.D. Technologies — built by Blade D. Yerby, starting August 23, 2024. Deterministic Provenance. Intent-Driven Architecture. Living Digital Organism.